

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Case Management Order

2026CUOE059601: RILEY SNYDER vs ONYX CREATIVE INC.

08/05/2026 in Department 44

Mandatory Appearance Case Management Conference (Case Management Order)

NOTICE OF ASSIGNMENT FOR ALL PURPOSES: All parties shall take notice that the above-referenced case has been assigned to Judge Charmaine H. Buehner and Department 44 of the Ventura County Superior Court, located at the Hall of Justice, 800 South Victoria Avenue, Ventura, CA, 93009.

Tentative Case Management Order. The following is a statement of the Court's tentative case management order. The parties are welcome to provide input and propose modification(s) to any aspect of the CMO at the Case Management Conference. If all parties submit on the tentative CMO, the Court will adopt the tentative CMO, and the parties need not appear. If there are any matters not addressed in the tentative CMO that any party would like to discuss, that party should not submit on the tentative, and the Court will conduct the conference as scheduled.

[TENTATIVE] CASE MANAGEMENT ORDER: PAGA-ONLY LAWSUIT

1. Department 44 Rules.

Counsel and parties are ordered to comply with Department 44's Rules and Procedures and Zoom Appearance Protocols, which are available at: <https://ventura.courts.ca.gov/department-44>.

REMOTE APPEARANCES: The Court requires parties to register for each Zoom appearance at the following link by **3:00 p.m. the court day before the hearing:** <https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>. The Court no longer accepts or monitors e-mails sent to Department 44 for notifications to appear remotely.

Failure to register timely means you will not be admitted to the remote proceeding. No advance notice is required to appear in court in person.

Department 44 does not accommodate Court Call appearances.

2. Electronic Filing and Service.

Effective May 5, 2025, and July 1, 2025, the Ventura County Superior Court mandates the electronic filing and service of documents. (See Administrative Orders 25.03 (Feb. 26, 2025.) & 25.04 (Jun. 27, 2025).)

3. Mediation.

Defendant is not amenable to mediation, but is amenable to a mandatory settlement conference. Accordingly, the Court sets an MSC on **July 20, 2027 at 10:00 a.m. in Department 22 of the Ventura County Superior Court. The parties are ordered to follow Department 22's requirements in connection with the MSC.**

If the parties agree to a voluntary, informal exchange of discovery prior to mediating, the Court encourages (but does not require or order) the parties to include a verification with each production of discovery so that if the mediation is unsuccessful, the parties will not have to duplicate or repeat this exchange of discovery.

4. Arbitration.

The Parties are unaware of any relevant arbitration agreements.

5. Phased Discovery.

The parties have not provided information that would cause the Court to bifurcate discovery in this PAGA-only action. Accordingly, and unless the parties agree to stay discovery pending the conduct of a mediation by submitting a stipulated request for such an order, the parties are free to engage in discovery.

6. Employee Contact Information Discovery.

The decision in *In Re Insurance Installment Fee* cases (2012) 211 Cal.App.4th 1395, 1426-1429, held that the notice procedure prescribed by the trial court and followed by the defendant was necessary to protect privacy rights under the California Constitution. The parties shall use the procedure described in *Belaire-West Landscape v Superior Court* (2008) 149 Cal.App.4th 554 to notify aggrieved employees, as described in the applicable paragraph of the currently operative complaint, giving them the opportunity to opt out. The parties must share the cost of the procedure equally.

- a. Plaintiff is to take the lead and prepare a proposed letter to be sent out by the agreed-upon third party administrator. The parties must discuss and settle upon a final version.
- b. The letter must be written using the administrator's letterhead, not that of any party.
- c. The defense must turn over the contact information consisting of name, address, phone number, and email address (if available) to the third-party administrator.
- d. In the event the putative employee list is greater than 400 people, the administrator must randomly select a sample of no more than 400. The contact information for those persons who did not opt out must be turned over to the plaintiff.

7. Payroll Records Discovery.

Responses to any payroll record discovery requests must be uniquely numbered and redacted so that aggrieved employees' identifying information, i.e., name, social security numbers, etc. are not revealed.

8. **Stipulated Protective & ESI Orders.**

The parties are encouraged to submit stipulated proposed protective orders and orders concerning the handling of ESI for the Court's review. By way of example of a protective order, the Court refers the parties to the model protective orders published by the Los Angeles Superior Court at <https://www.lacourt.ca.gov/pages/lp/civil/tp/civil-case-types-and-specialty-courtrooms/cp/compl-ex-civil-litigation>. The parties may use the LASC model protective orders as published, or as a template subject to modifications. If modified, the parties shall include a redlined courtesy copy to be lodged with the court at the time of filing. The parties must use the redlined version to identify any changes proposed to the model order.

9. **Informal Discovery Conferences.**

The Court invites the parties to request an informal discovery conference in accordance with Department 44's rules and Local Rule 8.10. IDC's are conducted from chambers via Zoom.

10. **Potential Related Cases.**

Counsel are ordered to file and serve a Notice of Related Case for any potentially related cases pursuant California Rule of court Rule 3.300, including any PAGA case involving the same representative plaintiff. This is a continuing obligation on both plaintiffs and defendants while this case is pending.

11. **Pretrial Conference & Trial.**

Event	Date
Trial	February 7, 2028, at 1:30 p.m.
Pretrial Conference	January 28, 2028, at 8:30 a.m.
All other Litigation Dates & Deadlines	Per Code of Civil Procedure

COURT TRIAL

The Court sets this matter for a 5-day **court trial** on the above trial date in Department 44 of the Ventura County Superior Court. The trial date is a **date certain** for trial under California Rules of Court, Rule 3.1332. The Court **will not** grant any continuances but for a request made pursuant to, and good cause showing under, Rule 3.1332. Trial counsel are ordered to attend trial in person.

PRETRIAL CONFERENCE

The Court also sets a Pretrial Conference on the above pretrial conference date in Department 44. The parties are ordered to **complete mediation at least 30 days prior to the pretrial conference**, and **file a joint pretrial conference report** in accordance with the Local Rules for Department 44, which rules are incorporated into and made part of this Case Management Order. **Trial counsel is ordered to appear at the Pretrial Conference**, and may attend the pretrial conference remotely so long as trial counsel provides timely registration of their intent to appear remotely in accordance with the Court's local rules.

12. **Settlement.**

In the event the parties reach a settlement, Plaintiff shall file a notice of settlement on Judicial Council form CM-200, a mandatory form. If settlement includes dismissal of class action claims (such as a PAGA only settlement or an individual settlement), then Plaintiff must comply with CRC 3.769 and 3.770 in order to obtain dismissal of class claims. Do **NOT** use Judicial Council Form Civ-110, Request for Dismissal.

Plaintiff is ordered to give notice, and to file a proof of service of such notice within 5 days.

IT IS SO ORDERED.